



MISSOURI HOUSE OF REPRESENTATIVES
WITNESS APPEARANCE FORM

BILL NUMBER: HB 2666		DATE: 4/8/2026	
COMMITTEE: Judiciary			
TESTIFYING: ☒ IN SUPPORT OF ☐ IN OPPOSITION TO ☐ FOR INFORMATIONAL PURPOSES			
WITNESS NAME			
BUSINESS/ORGANIZATION:			
WITNESS NAME: ARNIE C. AC "HONEST-ABE" DIENOFF		PHONE NUMBER: 314-440-9000	
BUSINESS/ORGANIZATION NAME: STATE PUBLIC ADVOCACY		TITLE: STATE PUBLIC ADVOC ATE	
ADDRESS: P.O. BOX #1535			
CITY: O' FALLON		STATE: MO	ZIP: 63366
EMAIL: ArnieDienoff@Mail.Com	ATTENDANCE: In-Person	SUBMIT DATE: 4/8/2026 11:59 PM	
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WITNESS NAME			
REGISTERED LOBBYIST:			
WITNESS NAME: HEATH CLARKSTON		PHONE NUMBER: 573-520-7240	
REPRESENTING: MISSOURI PRESS ASSOCIATION; MISSOURI BROADCASTERS ASSOCIATION		TITLE:	
ADDRESS: 235 E. HIGH STREET			
CITY: JEFFERSON CITY		STATE: MO	ZIP: 65101
EMAIL: heath@cnmissouri.com	ATTENDANCE: Written		SUBMIT DATE: 4/8/2026 7:35 AM
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WITNESS NAME			
REGISTERED LOBBYIST:			
WITNESS NAME: JAMES HARRIS		PHONE NUMBER: 573-761-7875	
REPRESENTING: INSTITUTE FOR FREE SPEECH		TITLE:	
ADDRESS: 122 E. HIGH., SUITE 200			
CITY: JEFFERSON CITY		STATE: MO	ZIP: 65101
EMAIL:	ATTENDANCE:	SUBMIT DATE: 4/8/2026 12:00 AM	
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WITNESS NAME			
INDIVIDUAL:			
WITNESS NAME: KORTNIE HUDDLESTON		PHONE NUMBER:	
BUSINESS/ORGANIZATION NAME:		TITLE:	
ADDRESS:			
CITY:		STATE:	ZIP:
EMAIL:	ATTENDANCE: Written		SUBMIT DATE: 4/8/2026 11:46 PM
THE INFORMATION ON THIS FORM IS PUBLIC RECORD UNDER CHAPTER 610, RSMo.			

I urge you to oppose HB2666 (Keithley), the so-called “Uniform Public Expression Protection Act,” a bill that dangerously undermines accountability, stifles justice, and shields bad actors under the guise of protecting free speech. While the First Amendment is sacrosanct, this legislation does not strike a balance—it tilts the scales of justice in favor of those who would weaponize speech to harm others, leaving vulnerable Missourians without recourse.

These bills create a legal labyrinth designed to dismiss legitimate claims before victims can even present their case. By forcing courts to prioritize expedited motions to dismiss—and freezing discovery in the process—it denies plaintiffs the evidence necessary to prove defamation, fraud, or harassment. How can someone demonstrate malice or intent without access to facts? These bills effectively gag victims while empowering perpetrators.

Worse, they stack the deck against everyday citizens. If a defendant files a motion to dismiss and loses, they face no penalty. But if a plaintiff dares to challenge powerful interests and loses, they could be bankrupted by mandatory attorneys’ fees. This chilling financial risk will silence victims of slander, scams, or threats, particularly those without deep pockets. Justice should not be a luxury reserved for the wealthy.

The exemptions for government entities do little to protect the public. Private individuals, small businesses, and advocacy groups will bear the brunt of this law, as corporations and malicious actors exploit broad terms like “public concern” to evade responsibility. Imagine a business falsely disparaging a competitor, or an individual spreading dangerous misinformation—these bills grant them immunity, leaving victims powerless.

Moreover, the automatic stay on proceedings and prolonged appeals process drags out litigation, compounding emotional and financial strain on plaintiffs. Justice delayed is justice denied.

Missouri’s courts already have tools to dismiss frivolous lawsuits. These bills go far beyond combating “SLAPPs”—they erode access to justice for all. We cannot allow the right to free speech to become a license to lie, defame, or intimidate with impunity.

I urge you to reject these bills. Protect Missourians’ right to seek redress, safeguard the integrity of our courts, and ensure that the powerful are not handed a legal shield to silence the truth.



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WITNESS NAME			
INDIVIDUAL:			
WITNESS NAME: MICHAEL DREYER		PHONE NUMBER:	
BUSINESS/ORGANIZATION NAME:		TITLE:	
ADDRESS:			
CITY:		STATE:	ZIP:
EMAIL:	ATTENDANCE: Written		SUBMIT DATE: 4/8/2026 11:45 PM
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WITNESS NAME			
INDIVIDUAL:			
WITNESS NAME: SARAH BERRY		PHONE NUMBER:	
BUSINESS/ORGANIZATION NAME:		TITLE:	
ADDRESS:			
CITY:		STATE:	ZIP:
EMAIL:	ATTENDANCE: Written		SUBMIT DATE: 4/8/2026 8:13 AM
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This bill is presented as a protection of public expression, but in operation it significantly expands procedural tools that can be used to dismiss claims at an early stage and shift costs onto plaintiffs.

At its core, the bill broadens Missouri's existing framework by creating an expansive mechanism for early dismissal of claims tied to speech, petition, or association on matters of public concern. While those rights are fundamental, the structure here goes beyond protection and moves into procedural advantage.

The bill allows a defendant to file a special motion to dismiss early in litigation, which immediately stays discovery and halts proceedings.

This stay can extend not only through the trial court's ruling but through the entire appellate process if an appeal is filed. As a result, a claim can be effectively frozen for a prolonged period before any factual development occurs.

At the same time, the burden shifts to the responding party to establish a prima facie case at this early stage, often without access to discovery.

This creates a structural imbalance where claims may be dismissed before a plaintiff has a meaningful opportunity to obtain evidence necessary to support their case.

The bill further mandates that courts award costs, attorney's fees, and litigation expenses to a moving party who prevails. While there is a provision allowing recovery for a responding party if a motion is frivolous, the standard is higher and less readily triggered.

This creates a financial risk structure that can deter otherwise valid claims from being filed or pursued.

Additionally, the bill requires that it be "broadly construed," reinforcing an expansive application of these dismissal mechanisms across a wide range of cases involving speech or public participation. The cumulative effect is not just protection of expression, but the creation of a powerful procedural shield that can limit access to the courts.

Legislative Notice:

Let the record reflect the following:

This bill alters procedural access to the courts by imposing early-stage evidentiary burdens, mandatory stays of proceedings, and fee-shifting provisions that may impact a party's ability to pursue claims. These structural changes raise considerations related to due process and the constitutional right of access to the courts under both the United States Constitution and the Missouri Constitution.

To the extent that claims may be dismissed prior to the development of a factual record, and financial penalties may attach to unsuccessful claims, the framework created by this bill may be subject to judicial scrutiny regarding fairness and balance in civil proceedings.

For these reasons, I stand in opposition.